

25SMCV04948 25SMCV04948

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This is a demurrer in a construction matter. Defendant makes two arguments. The first is that plaintiff did not plead the contract adequately in that the complete contract was not attached (because the attached document adverted to other things that were pertinent but not attached), quote the precise contractual language defendant is accused of breaching, or set forth the specific legal effect of those contractual provisions.

The operative FAC alleges that in April 2023, the parties agreed that plaintiff would renovate a building in Beverly Hills. A letter of intent was signed to that effect, and that LOI referred to other documents that plaintiff claims included terms of the contract and also referred to plans detailing the work to be performed and the requirements of what plaintiff needed to complete the project. The LOI included the estimated fees plaintiff would charge and required plaintiff to submit progress billings periodically. Defendant was to pay the bills within a reasonable time. In June 2023, defendant allegedly told plaintiff that the renovation would be stopped. Plaintiff claims that in August 2023, defendant told plaintiff that the invoices that had been received looked fine, including a final invoice for \$536,860.86. However, that final invoice was never paid, leading to this suit. Defendant demurs and plaintiff opposes.

Preliminarily, the defense suggests that there was an inadequate meet and confer. While the meet and confer was not optimal, the court cannot overrule a demurrer on that basis; all it could do is continue the matter.

The court is not sure that would be productive. The request for judicial notice of the Layton declaration is GRANTED, although not for the truth of the matters asserted. It is too far outside the pleadings. Plaintiff's request for judicial notice is

GRANTED.

The law is settled that in an action based on a written contract, a plaintiff need only plead the legal effect of the contract; plaintiff need not plead the precise language. (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189.) Plaintiff does that. While it is true that the LOI attached to the FAC does not also attach the documents to which it refers, that is not required. (And, of course, defendant could have done so.) If defendant is really confused, discovery ought to solve the problem. The bottom line is that plaintiff alleges that defendant agreed to pay the invoices, but the final (and very large) invoice was not paid. That is enough. Defendant also claims that the contract is uncertain because no specific time for payment is set forth. That is not fatal. Where a precise time line is absent, the court will infer a reasonable period.

The final issue is that the bill in question is for lost profits. But a demurrer is not the proper vehicle to make that challenge; that ought to be done by way of a motion to strike. (Caliber Bodyworks, Inc. v. Superior Court (2005) 134 Cal.App.4th 365, disapproved on other grounds in ZB, N.A. v. Superior Court (2019) 8 Cal.5th 175.) Further, the argument relies on extrinsic evidence beyond the four corners of the pleading. The Layton declaration cannot be used by the court on demurrer in the manner defendant suggests. The same argument is made with regard to the common count cause of action. It fails for the same reason. The court also notes that it is far from clear that a "lost profit" invoice is improper. As a final bill, it reflects (if defendant is correct) profits that would have been made on the project. That is a part of expectation damages. In any event, the demurrer is OVERRULED. Defendant has 30 days to answer.